

Raj Kumar Didwania v. State of U.P. And Others

Allahabad High Court · Division Bench · 13 September 2012 · Writ - C No. 44117 of 2012 · **Writ disposed as infructuous after demand withdrawn; objection to provisional assessment permitted.**

HEADNOTE

A writ to quash an electricity recovery demand became infructuous once the licensee withdrew the notice as issued only on provisional assessment. The consumer may file a written objection to that assessment; the Executive Engineer is to finalise it within two weeks of the objection.

FACTUAL SUMMARY

Raj Kumar Didwania petitioned the Allahabad High Court to quash a 19 May 2012 demand notice of the Executive Engineer seeking recovery of electricity dues. He argued that the amount had been calculated in disregard of the U.P. Electricity Supply Code, 2005 and that factor F had been wrongly applied. A short counter-affidavit of respondent no. 3 recorded that the demand was being withdrawn because it had been issued only after a provisional assessment. Respondents invited the petitioner to object to that provisional assessment.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

demand notice after provisional assessment

HOLDING

Once the licensee withdrew a recovery demand issued only after provisional assessment, the writ seeking quash of that demand became infructuous. Against the remaining provisional assessment the consumer may file a written objection before the Executive Engineer within the date fixed; the Executive Engineer shall finalise the assessment within two weeks of the objection. ¶ 1

PRINCIPLE TAGS

writ-dismissed-as-infructuous-with-liberty-to-move-afresh

A writ to quash an electricity recovery demand became infructuous once the licensee withdrew the notice as issued only on provisional assessment. The consumer may file a written objection to that assessment; the Executive Engineer is to finalise it within two weeks of the objection. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND WAS CALCULATED IN DISREGARD OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 AND WHETHER FACTOR F WAS WRONGLY APPLIED

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